



IN THE HIGH COURT OF KARNATAKA

KALABURAGI BENCH

DATED THIS THE 8TH DAY OF DECEMBER, 2025

PRESENT

THE HON'BLE MR. JUSTICE H.T.NARENDRA PRASAD

AND

THE HON'BLE MR. JUSTICE TYAGARAJA N. INAVALLY

WRIT APPEAL NO. 200033 OF 2024 (LB-RES)

BETWEEN:

1. VASUNDHARA
W/O MANOHAR AINAPUR,
AGE: 68 YEARS, OCC: HOUSEHOLD WORK,
R/O. P NO.78, VIVEKNAGAR (WEST),
VIJAYAPUR – 586 101.
2. SURESH
S/O CHANAPPA DESAI,
AGE: 71 YEARS, R/O. P NO.142,
VIVEKNAGAR (WEST),
VIJAYAPUR – 586 101.
3. MAHADEVAYYA
S/O VEERAYYA GACHINMATH,
AGE: 60 YEARS,
R/O. P.NO.155,
VIVEKNAGAR (WEST),
VIJAYAPUR – 586 101.
4. SHASHIDHAR
S/O SHIVARAYA PANCHAKSHARI,
AGE: 53 YEARS,
R/O. P.NO.157, VIVEKNAGAR (WEST),
VIJAYAPUR – 586 101.





5. ROSHANBI
W/O VAJEERBASHA BAGAYAL,
AGE: 70 YEARS,
R/O. P.NO.732,
VIVEKNAGAR (WEST),
VIJAYAPUR – 586 101.
6. RAGHAVENDRA
S/O SRINIVAS MADHBAVI,
AGE: 77 YEARS,
R/O. P.NO.146,
VIVEKNAGAR (WEST),
VIJAYAPUR- 586 101.
7. VIRUPAXAYYA
S/O SHANKARAYYA HIEMATH,
AGE: 64 YEARS,
R/O. P.NO.730,
VIVEKNAGAR (WEST),
VIJAYAPUR – 586 101.
8. DR.RIZWAN SHOLAPURKAR,
AGE:37 YEARS,
R/O. P.NO.156,
VIVEKNAGAR (WEST),
VIJAYAPUR – 586 101.
9. MAZHARI BEGUM
W/O BASHEER AHMED KAZI,
AGE: 72 YEARS,
R/O. P.NO.150,
VIVEKNAGAR (WEST),
VIJAYAPUR – 586 101.
10. SHANKREPPA
S/O SHIVAPPA ARAKERI,
AGE: 54 YEARS,
R/O. P NO.148,
VIVEKNAGAR (WEST),
VIJAYAPUR- 586 101.



11. HANMANT S/O IRAPPA GUNDAGI,
AGE: 71 YEARS,
R/O. P.NO.142,
VIVEKNAGAR (WEST),
VIJAYAPUR – 586 101.
12. SHRISHAIL S/O SANGAPPA KANGANAL,
AGE: 80 YEARS,
R/O. P.NO.147,
VIVEKNAGAR (WEST),
VIJAYAPUR – 586 101.
13. KASHINATH S/O JAGDEVAPPA JAMBAGI,
AGE: 76 YEARS,
R/O. P.NO.145,
VIVEKNAGAR (WEST),
VIJAYAPUR – 586 101.
14. PUNDALIK S/O SIDDAPPA VAGAMANDI,
AGE: 80 YEARS,
R/O. P.NO.141,
VIVEKNAGAR (WEST),
VIJAYAPUR – 586 101.

...APPELLANTS

(BY SRI. D.P. AMBEKAR, ADVOCATE)

AND:

1. THE STATE OF KARNATAKA,
REPRESENTED BY ITS
PRINCIPAL SECRETARY,
DEPARTMENT OF MUNICIPAL ADMINISTRATION,
VIKAS SOUDHA, BENGALURU-560 001.
2. THE DEPUTY COMMISSIONER,
OPPOSITE CITY CENTRAL BUS STAND,
VIJAYAPUR-586 101.



3. THE COMMISSIONER,
CITY MUNICIPAL CORPORATION,
GANDHI CHOWK,
VIJAYAPUR-586 101

...RESPONDENTS

(BY SRI. VIRANAGOUDA M. BIRADAR, AGA FOR R1 TO R2
BY SRI. SACHIN M. MAHAJAN, ADVOCATE FOR R3)

THIS WRIT APPEAL IS FILED UNDER SECTION 4 OF THE KARNATAKA HIGH COURT ACT, PRAYING TO, A) CALL FOR THE RECORDS AND SET-ASIDE THE IMPUGNED ORDER DATED 17.01.2024 PASSED BY THE SINGLE JUDGE OF THIS HON'BLE COURT DISMISSING THE WP NO.201418/2017 (LB-RES), AND FURTHER ALLOW THE SAID WP NO.201418/2017 (LB-RES) IN FULL AS PRAYED FOR THEREIN AND ETC.

THIS APPEAL, COMING ON FOR ORDERS, THIS DAY, JUDGMENT WAS DELIVERED THEREIN AS UNDER:

CORAM: HON'BLE MR. JUSTICE H.T.NARENDRA PRASAD
and
HON'BLE MR. JUSTICE TYAGARAJA N. INAVALLY

ORAL JUDGMENT

(PER: HON'BLE MR. JUSTICE H.T.NARENDRA PRASAD)

In this appeal, the appellant has called in question order dated 17.01.2024 passed in W.P.No.201418/2017.



2. The case of the appellant is that the respondent-City Municipal Corporation, without following due process of law, as provided under the Karnataka Municipal Corporation Act, 1976 (in short, the 'Act') has issued a notice dated 22.03.2017 in the nature of a final order. Therefore, appellant is before this Court.

3. Learned counsel appearing for the Corporation has filed a memo enclosing the order dated 04.10.2024, whereby a final order under Section 321 of the Act has already been passed. In view of the same, the relief sought in this appeal does not survive for consideration. Accordingly, the writ appeal is dismissed.

**Sd/-
(H.T.NARENDRA PRASAD)
JUDGE**

**Sd/-
(TYAGARAJA N. INAVALLY)
JUDGE**